Ex Tempore

XINTAI RESOURCES (PVT) LTD
versus
ZIMBABWE REVENUE AUTHORITY

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 9 and 10 June 2026

Opposed Application

N. Mashizha with M. Matimba, for the Applicant.
P. Mwandura, for the Respondent.

DEME J: The Applicant approached this court seeking a declarator. In particular, the Applicant seeks the following relief:

> "1. The application for declaratur be and is hereby granted.
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> 2. It is hereby declared that the failure of the Respondent to pay refunds arising from the Applicant's Value Added Tax Returns for the periods December/January 2023, February/March 2025, June/July 2025 is unlawful.
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> 3. The Respondent's amendment of the February/March 2025 VAT Return is declared invalid.
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> 4. The Respondent is hereby ordered to pay, forthwith, the refunds arising from the Applicant's VAT Returns for the periods December/January 2023, February/March 2025, June/July 2025, and interest at the rate prescribed from the date each VAT Return was submitted by the Applicant to the Respondent to the date of payment of the refunds concerned.
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> 5. The respondent shall pay the costs of this application on an attorney and client scale if they oppose the application."

The matter was opposed by the Respondent which raised two points *in limine*. Firstly, the Respondent averred that the Applicant ought to have exhausted local remedy outlined in s 32 of the Value Added Tax Act [*Chapter 23:12*]. On the day of hearing, Ms *Mwandura* raised a second point *in limine* to the effect that the founding affidavit was not properly commissioned.

I will start by determining the improper commissioning of the founding affidavit. In my view, this issue is very key as it determines whether there is an application before the court. Before commencing the proceedings, I asked whether Mr. *Mashizha* was ready to deal with the new issue raised and he indicated his willingness to deal with the matter.

Arguing in favour of the second point *in limine*, Ms *Mwandura* argued that there is no application before the court. She submitted that the founding affidavit which has a computer-generated date is defective. Reference was made to the cases of *Twin Castle Resources (Pvt) Ltd* v *Paari Mining Syndicate and Ors*[1], *Mandishaika* v *Sithole*[2], *Ndoro and anor* v *Conjugal Enterprises (Pvt) Ltd and Anor*[3], *Ariston Management Services* v *Econet Wireless Zimbabwe Ltd*[4] *and Kwesiga* v *Prosecutor General and Ors*[5].

Mr. *Mashizha* submitted that the Applicant was prejudiced by the late notification of the new point *in limine*. He urged the court to disregard the point *in limine* on that basis. On the merits, Mr. *Mashizha* argued that the purpose of the law on this aspect is that the court must be satisfied that the affidavit has been properly commissioned. He urged the court to admit the affidavit in its state. He further submitted that the commissioner of oaths is based at the office which is adjacent to the Applicant's legal practitioners and hence there is no reason to doubt that the founding affidavit was properly commissioned.

The submission by Mr. *Mashizha* that he was prejudiced by the raising of a fresh point *in limine* is contradicted by his submission before commencement of proceedings. The court asked whether he was prepared to deal with the new point *in limine*. He responded affirmatively to the court inquiry. On this basis alone, I have no option except to make a determination on the fresh point in *limine.*

In the case of Ndoro and Anor v *Conjugal Enterprises (Pvt) and Anor supra*, the court, in commenting on the significance of the point of law, remarked as follows:

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[1] HH153/21.
[2] HH798/15.
[3] HH814/22.
[4]SC123/23.
[5] SC58/25.

> "It is now settled that points of law may be raised at any time. They ought not necessarily to have been pleaded. Reference is made to the case of *Ampthill Peerage* [6], *where* LORD WILBERFORCE remarked as follows:
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> "Any determination of dispute of fact may, the law recognises, be imperfect; the law aims at providing the best and safest conclusion compatible with human fallibility, and having reached that solution it closes the book. The law knows. And we all know, that sometimes-fresh material may be found, which perhaps might lead to a different result, but, in the interest of peace, certainty and security it prevents further inquiry."

Thus, according to the case of Ampthill Peerage (*supra*), one of the advantages of allowing point of law to be raised at any time is that law is certain and has the ability of bringing finality to litigation. A point of law will always be available whether or not it has been raised. Thus, there will be limited or no prejudice to be suffered by the opposite party. The major potential prejudice likely to be suffered by the Respondents was whether or not their counsel was ready to respond to the point of law upon a short notice. Upon being asked by the court whether he was ready to respond, the counsel for the Respondents highlighted that he was ready to respond and did not need extra time to prepare his response.

It is essential to emphasise that a point of law can be raised by a litigant or by the court on its own initiative. Reference is made to the case of Sindikumbuwalo Pacifique v The Commissioner General Department of Customs and Excise[7], where the court postulated the following pertinent remarks:

> "The question whether or not there is a defendant before the court is a critical point of law. A court cannot proceed to hear any matter on merit unless satisfied that there are parties before it who seek resolution of a dispute resulting in a competent decision which is binding upon the parties. Critical as it is, a point of law can be raised at any time. I do not believe that the issue of whether or not there is a defendant before the court has to be raised through an exception. In *Muchakati* v *Netherburn Mine* 1996 (1) ZLR 153 (S) the Supreme Court held that a point of law that went to the root of the matter can be raised at any time. Apart from a litigant raising same the court can raise it *mero motu*."
> In my view, I see no merit in the argument for counsel for the Respondents. In the premises, I am of the view that the point of law was properly raised."

In *casu*, the question of whether the founding affidavit is properly before the court is central to the application before the court. The court ought to make a determination on whether

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[6] *1977]* AC 547 at 569.
[7] HH137/18.

the founding affidavit was properly commissioned. In the case of Mandishaika v Sithole *supra*, the court held that:

> "An affidavit is a written statement made on oath before a commissioner of oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner. Equally the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."

The decision of Mandishaika *supra* was by two Judges of this court which binds this court where one Judge is sitting. The decision of Mandishaika was confirmed in the case of Ariston Management Services *supra*. The Supreme Court's decision is binding on this court. On this basis, I have no option except to follow the decided cases which are binding on this court.

Certainly, the founding affidavit does have a computer-generated date. This fact is common cause. Such affidavit according to common law developed by our courts is improperly before the court. Accordingly, the application is founded on nothing. Consequently, the application ought to be struck from the roll. Having reached this conclusion, it is unnecessary for the court to make a determination on the remaining point *in limine*.

The second point *in* limine was raised for the first time during the hearing of this matter. It is not fair to punish the Applicant with costs for something which only arose on the hearing day. The Respondent ought to have given the opposite party sufficient time if they wanted to claim costs against the Applicant. In the circumstances, it is ordered as follows:

A. The point *in limine* that the founding affidavit is defective be and is hereby upheld.

B. The application be and is hereby struck from the roll with no order as to costs.

DEME J:……. …….

Mashizha, Mutukwa and Sambo, Applicant's Legal Practitioners
Wintertons Legal Practitioners, Respondent's Legal Practitioners.